

Rationale:

Sources: 2017 Resolution 33, 2021 Resolution 28, 2023 NPC Rec 7, NPC motion to create NGP, National Code of Conduct, Meeting Code of Conduct, Paula's document of NPC grievance related decisions, "Dear Comrade" guidance (2017).

This resolution attempts to compile all of the known grievance authority in a single place and codify the DSA practice of treating harassment and non-harassment grievances the same way under existing policy.

Effective text:

Resolved,

1. Resolution 33 passed by the 2017 DSA National Convention and all amendments to Resolution 33 and decisions related to Resolution 33, whether passed by convention, the NPC, or otherwise, are rescinded.
2. DSA adopts the following Uniform Grievance Policy:

UNIFORM GRIEVANCE POLICY

Democratic Socialists of America is committed to creating a space that is welcoming and inclusive to members of all genders, races, and classes. The following policy provides guidelines to ensure that everyone is able to

organize without fear of harassment, abuse, or harm. We further recognize that interpersonal conflict can arise within our organization and manifest itself within and without our political processes. The processes created by this policy are designed to address inappropriate personal conduct by members, and not political conduct which may nevertheless interfere with DSA's core political work.

1. General Provisions

- a. Any investigation or proceeding by any DSA body, including but not limited to a chapter, a chapter steering committee ("SC"), or the National Political Committee ("NPC"), which may result in a member being disciplined by the organization on the basis of their personal conduct, whether permanently, temporarily, or otherwise, must follow the procedures laid out in this policy.
- b. This policy does not apply to simple moderation of online resources, though a member's conduct in online spaces may give rise to a complaint under this policy.
- c. This policy does not restrict a chapter meeting's ability to remove a member from said meeting where said member's behavior during the meeting violates this policy or DSA's Meeting Code of Conduct.
- d. "Conflict of interest" as used in this policy means a member's

inability to participate in a grievance-related proceeding without preconceived judgment or opinions.. The mere knowledge of circumstances surrounding a grievance does not, in itself, give rise to a conflict of interest.

- e. All DSA and YDSA chapters will follow this policy. Provisions of chapter bylaws or policies that directly contradict this policy are superseded by this policy.

2. **Behavior and Conduct.**

- a. **Prohibited behavior.**
Members shall not engage in harassment on the basis of sex, gender, gender identity or expression, sexual orientation, physical appearance, disability, race, color, religion, national origin, class, age, or profession. Conduct, such as unwelcome attention, inappropriate or offensive remarks, slurs, or jokes, physical or verbal intimidation, stalking, inappropriate physical contact or proximity, and other verbal and physical conduct constitutes harassment only when one or more of the following occurs:
 - i. Submission to such conduct is made either explicitly or implicitly a term or condition of a member's

continued
affiliation with
DSA;

- ii. Submission or rejection of such conduct by an individual is used as the basis for organizational decisions affecting such individual; or,
- iii. Such conduct has the purpose or effect of creating a hostile environment interfering with an individual's capacity to organize within DSA.
 - 1. A "hostile environment" is created only where the conduct is sufficiently severe or pervasive as to alter the conditions of membership in DSA and create an abusive organizing environment.
 - 2. Conduct will be presumed "sufficiently severe or pervasive" where a

reasonable
person
would be
offended
by the
conduct.

b. **Member conduct.**

Members are expected to abide by the [National Code of Conduct](#), the [Meeting Code of Conduct](#), and any applicable bylaws provisions or code of conduct passed by their local chapter.

c. **Online conduct.**

Expectations regarding the conduct of DSA members are enforceable for online behavior, including but not limited to conduct on social media, as well as offline behavior.

3. **Harassment/Grievance Officers.**

- d. DSA will have harassment/grievance officers (“HGOs”) at both the local and national levels. HGOs will assist members in making complaints, investigate complaints, report the results of investigations to the appropriate body, and educate members on this policy.

4. **Privileges of Membership.**

- e. Members of DSA are vested with the privilege of being treated with fundamental fairness during any investigation

or proceeding under this policy.

f. Specifically, members are entitled:

iv. To notice, in writing, of any allegations made against them.

v. To an opportunity to respond, in writing, to any allegations made against them.

vi. To have complaints they make or that are made against them investigated by HGOs.

vii. To the confidentiality of information they may share during an investigation or proceeding under this policy, with the understanding that any information provided during an investigation or proceeding under this policy may be shared with the Steering Committee and may be reviewed at the national level.

viii. To a written final adjudication on complaints they make or that are made against them, including factual findings based on

evidence, when an outcome is reached.

- ix. To appeal final adjudications and/or discipline to which the member is a party and which is adverse to that member to the NPC. There is no privilege of appeal from any decision of the NPC.

5. National Structures.

- g. National DSA will:

- x. Have and maintain a Committee of Grievance Officers ("CGO") as described in subsection c of this section.
- xi. Have and maintain a National Grievance Panel ("National Grievance Panel") as described in subsection d of this section.

- h. The **National Political Committee** ("NPC") will:

- xii. Maintain and revise as necessary the National Code of Conduct and Meeting Code of Conduct.
- xiii. Ensure that chapters are in compliance with

this policy by maintaining a list of chapter HGOs and trainings they attend.

xiv. Refrain from using any independent contractor, other than attorneys hired to represent DSA and provide DSA with legal advice, to effect the terms of this policy.

xv. Have ultimate and sole authority to make decisions on complaints or appeals that may come before it. For complaints appropriately directed to the NPC, the NPC is the Steering Committee as that term is used in this policy.

xvi. Ensure that NGP members have access to past NPC grievance decisions while adequately protecting all potentially sensitive member data.

xvii. Individual members of the NPC will recuse themselves from any matter under this policy in which they have a conflict of interest, or in

which a conflict of interest is likely to arise.

i. **Committee of Grievance Officers.**

The Committee of Grievance Officers ("CGO") will work to formalize connections between HGOs in local chapters and in YDSA for the purpose of ongoing skillshares and collaboration, and to provide HGOs support for their work.

xviii. Membership on the CGO is open to DSA and YDSA members in good standing who are interested in the harassment and grievance process, able to contribute to the work of the committee, and who are invited by the Steering Committee of the CGO.

Members will be invited on an "as-needed" basis by the Steering Committee of the CGO.

xix. The Steering Committee of the CGO will be composed of one member of the NPC, who shall chair the Steering Committee, up to ten current or former chapter HGOs selected by the NPC, and a representative of the YDSA

Chapter Health
and
Intersectionality
Committee

Other members
of the NPC may
act as non-
voting liaisons.

The Steering
Committee may
recommend
candidates for
addition to the
Steering
Committee to
the NPC.

xx. The CGO
Steering
Committee may
draft and pass
bylaws to
govern its work
and may, at its
discretion,
create
subcommittees
to carry out its
work.

xxi. The CGO will:

3. Determine
appropriate
training
requirements
for
HGOs.
4. Organize
meetings
open to
all DSA
members
interested
in the
grievance
process,
which
may
include
skillshares,
trainings,
and
breakout
sessions
for

consultation
and
mutual
support
of
chapter
HGOs.

5. Seek
input
from
chapter
HGOs
about
existing
community
accountability
and
mediation
programs,
and will
provide
support
to
chapter
HGOs in
developing
and
implementing
such
programs.
6. Develop
materials
to assist
chapter
HGOs
and, with
the
assistance
of the
National
Tech
Committee
(NTC),
work to
ensure
that
materials
related to
the
grievance
process
are
accessible
by
members
on the

DSA
website.

Said
materials
will
include
template
forms for
reporting
and
responding
to
complaints
and
appeals.

7. Assist
the NGP
Chairs in
conducting
an
annual
survey of
chapter
HGOs in
December
of each
year.

8. Review
this
policy
from time
to time
and draft
proposed
revisions
as
necessary.

xxii. The CGO chair
will:

1. Work to
develop
the HGO
community
by
facilitating
opportunities
and a
space for
HGOs to
discuss
chapter
situations,
seek
support

and
feedback,
and
review
plans of
action.

2. Collaborate with the NGP on training for HGOs.
3. With the NGP Chairs to maintain a list of chapter HGOs.
4. Identify and work to develop HGOs in chapters without identified HGOs.

j. **National Grievance Panel.** The National Grievance Panel ("NGP") consists of DSA's national HGOs. The NGP will investigate national complaints and appeals and make recommendations on complaints and appeals to the NPC.

xxiii. The NGP will consist of a panel of members appointed by the NPC.

9. NGP members will be appointed for two years

and will be appointed the January following an NPC election. The NGP will be chaired by two co-chairs, selected from its membership by the NPC. Additional members may be appointed by the NPC upon recommendation from the NGP chairs.

10. The roster of all NGP members will be available to DSA members, but which members may be assigned to individual cases will only be known to the chair, the NPC, and other panel members.

11. Members will be appointed or removed from the NGP only with a supermajority of NPC (12 votes).

12. Members of the NGP will recuse themselves from any matter under this policy in which they have a conflict of interest, or in which a conflict of interest is likely to arise. No NGP member will review a matter originating from their local chapter.

xxiv. The NGP will:

13. Serve as HGOs at the national level.

14. Review appeals

to the
NPC in
accordance
with this
policy.

15. Investigate
complaints
made to
the NPC
in
accordance
with this
policy.

16. Review
requests
for
national
expulsion
made to
the NPC
in
accordance
with this
policy.

17. Identify
complaints
and
appeals
which
may
require
guidance
from
legal
counsel.

18. Strive for
consistency
in
practice
in
applying
DSA
grievance
procedures,
policies,
and
provide
support
for
chapters
to
support
chapter-

level
consistency
with
those
same
provisions.

19. Prepare
a report
for
Convention
on the
grievance
process,
up to and
including
recommendations
for
revisions.

xxv. The NGP chairs
will:

20. Monitor
the
national
grievance
email
address
and
respond
to
queries,
concerns,
complaints,
and any
other
matters,
serving
as the
first point
of
contact
for
complaints
and
appeals
at the
national
level.

The
NGP
chairs
will
maintain
a
national
grievance

submission
and
appeal
systems,
and
monitor a
national
grievance
email to
accept
appeals
and
receive
complaints.

21. Track the
status of
national
grievances
or
appeals,
triaging
grievances/appeals,
compiling
finalized
NGP
investigations
to
present
to the
NPC,
delivering
notice of
NPC
case
adjudications
to all
involved
parties,
and
collecting
grievance
reports
from
chapters.
22. Lead and
coordinate
meetings
of NGP
members
at
minimum
monthly.
23. Assign
and
manage

members
of the
NGP to
investigate
complaints
made to
the NPC
and to
consider
appeals
under
this
policy.

24. Conduct
a review
of each
case
finalized
by NGP
members
before
NPC
review to
ensure
consistency
in
practice
and
recommended
resolutions.
25. Maintain
records
of
complaints,
investigations,
expelled
members,
and
other
relevant
information
regarding
membership
status.
26. Develop
standardized
forms for
reports,
investigations,
and
procedural
recommendations
for use
by NGP
members.

27. In conjunction with the CGO, provide for training of NGP members and HGOs in best practices, conflict resolution, investigations, mediation, and other practices.

28. Collaborate with the CGO in the creation of a survey for chapter HGOs, covering reports of harassment, code of conduct violations, and areas that chapters identified need more support from the NGP, CGO, or national DSA to fulfill their obligations under this policy.

6. Local Structures.

k. Each DSA chapter will:

xxvi. Have at least one member designated as harassment/grievance officer(s) (“HGO”), who may be elected by membership or appointed by the chapter steering committee, at the chapter’s discretion.

HGOs may not simultaneously be members of the chapter’s Steering Committee.

xxvii. Chapters with more than one hundred members will have at least two HGOs.

xxviii. Determine term limits for chapter HGOs and develop methods for removing HGOs for cause.

xxix. Establish and monitor an email address to function as a confidential reporting “hotline” that is only accessible by the HGOs.

xxx. Maintain forms both for reporting and responding to complaints and

grievance
appeals.

xxxi. Determine
which HGO(s)
will be
responsible for
each complaint
that comes to its
attention.

- I. A chapter's Steering Committee will have sole authority to adjudicate complaints that may come before it as described in this policy. This will not be construed to abrogate the authority of the NPC as the highest decision making body of DSA between conventions.
- m. Chapters may pass local codes of conduct in accordance with their chapter bylaws.
- n. Unless a chapter's bylaws state otherwise, the chapter's Steering Committee will make determinations of member discipline under this policy.
- o. Chapters will provide the names and email addresses for the HGOs to the National Grievance Coordinator and the Committee of Grievance Officers on an annual basis.
- p. Chapter HGOs and Chapter Steering Committee Members will recuse themselves from any matter under this policy in which they have a conflict of interest, or in which a conflict of interest is likely to arise.
- q. If a chapter receives a complaint and all HGOs

recuse themselves from the matter, the Steering Committee will appoint a member to serve as HGO to address that complaint.

7. Grievances.

- r. **Complaints.** Any member that has been harassed by another member or believes another member's conduct violates an applicable code of conduct or their chapter's bylaws may make a complaint about the conduct of the other member to a chapter HGO.

xxxii.A complaint arising from online behavior of a member made by a member of a separate chapter may be made either to the accused member's chapter HGOs or to the NPC.

xxxiii.Chapter HGOs will maintain and monitor an email address accessible only to the HGOs to receive complaints and other communications regarding complaints.

xxxiv.The National Grievance Coordinator and NGP will maintain and monitor an email address

accessible only to the National Grievance Coordinator and NGP co-chairs to receive complaints to the NPC or other national communications regarding complaints.

xxxv. Complaints will be made in writing, preferably to the applicable HGO email address.

xxxvi. There is no time limit for making a complaint.

xxxvii. Except as provided in subsection i of this section, if a member contacts the National Grievance Coordinator, the NGP, or the NPC regarding a complaint without first having had the matter adjudicated at the local level, their complaint will be referred to the local chapter. Not having a chapter HGO will not be considered a reason for the NGP and/or NPC to agree to accept a complaint.

- s. **Disciplinary Referrals.**
Where a member has allegedly violated this

policy, any applicable member code of conduct, or other authority, a Steering Committee or HGO may issue a disciplinary referral against a member, which will be made in the same manner as a complaint and will be treated as a complaint under this policy.

t. **Preliminary Procedures.**

xxxviii. Upon receipt of a complaint, the responsible HGO(s) will provide notice of the complaint to the accused member within a reasonable time, ideally within seven (7) days of receiving the complaint.

Notice will include either a copy of the complaint or a summary which includes the specific conduct alleged to have violated this policy, an applicable code of conduct, or other authority.

xxxix. At any time following the receipt of a complaint, an HGO may notify the Steering Committee of the complaint and request from the Steering Committee temporary discipline as

necessary to
protect the
health and
safety of
members and
the integrity of
the organization.

- xl. An HGO may recommend that a complaining member and an accused member do not communicate with each other or with specific other persons for the duration of the grievance process.
- xli. With consent of the complaining member and the accused member, an HGO may refer a matter for alternative dispute resolution where appropriate.
- xlii. Once notified, the accused member will have seven (7) days to respond to the complaint. If the accused member requests additional time to respond, it should be freely given, but in no circumstances will the accused member be given more than fourteen (14) days to respond unless extraordinary circumstances justify the delay.

xlili.If an accused member fails to timely respond or request additional time, the HGO will recommend the Steering Committee take appropriate disciplinary action.

xliv.If an accused party denies the substance of the complaint, the HGO will conduct an investigation under Section 7(d) of this policy.

xlv. At any stage of a process under this policy, an accused member may name another member as an advisor or support person, provided the named member agrees to serve as advisor or support person. The advisor or support person may be any member who is not otherwise a party involved in the incident or a witness to the conduct stated in the complaint.

29. The advisor or support person's role is to provide guidance and/or

emotional support, and may not speak on behalf of a member or disrupt any meeting or proceedings in any manner.

30. Advisors or support persons may be excluded from participation if they fail to adhere to restrictions outlined here.

31. Conduct by an advisor or support person which constitutes retaliation under Section 11 of this policy will be the subject of a separate complaint under this policy.

u. **Investigation.** An HGO may investigate a complaint by

interviewing people with direct knowledge of the substance of the complaint, requesting appropriate documentation from the complaining member, accused member, or other person in possession of relevant documents or by any and all other necessary means.

xlvi. An HGO will complete the investigation in a reasonable time, ideally within ten (10) days of receiving the accused member's written response.

- v. **Report.** Following investigation, the HGO will create a report determining whether the complaint is credible, whether the alleged conduct violates this policy, and whether the alleged conduct more likely than not occurred.

xlvii. Grievance reports are confidential and will not be disseminated outside of the HGOs, the Steering Committee, the complaining member, and the accused member.

xlviii. A report may contain disciplinary recommendations to the Steering Committee.

xlix. Reports will be transmitted to the Steering Committee, the complaining member, and the accused member in a timely fashion. Grievance reports are ideally transmitted within thirty (30) days of the complaint being filed. If an HGO requires more than sixty (60) days to complete the report, the HGO must communicate the need for additional time to the Steering Committee, the complaining member, and the accused member.

w. **Adjudication.** The Steering Committee has sole decision making authority as to whether conduct more likely than not occurred and whether conduct violated this policy. The Steering Committee has authority to determine matters of member discipline under this policy, in accordance with any applicable bylaws.

l. The Steering Committee will follow processes described in the chapter bylaws in adjudicating a complaint, provided those bylaws

provisions do not contradict this policy.

li. Each complaint will be assessed on a case-by-case basis by the Steering Committee

lii. To adjudicate a complaint, the Steering Committee will determine:

32. Whether the alleged conduct more likely than not occurred;

33. Whether the conduct violated this policy or an applicable chapter policy; and,

34. Whether the accused member's conduct warrants discipline..

liii. The Steering Committee will make all necessary decisions on complaints in a timely fashion, not to exceed thirty (30) days from the receipt of the HGO's report.

- liv. The Steering Committee will not delegate its decision on adjudications or discipline to any committee, subcommittee, or person; provided, however, that a chapter's bylaws may require certain disciplinary matters to be considered by a chapter meeting.
- lv. The adjudication of a grievance will be in writing, and will contain findings based on the HGO report and any other evidence considered by the Steering Committee.
- lvi. The Steering Committee will notify the complaining member, the accused member, and the HGOs of any adjudication and of the right to an appeal within three (3) days of a decision. This communication will include a copy of the written adjudication.

8. Discipline.

- x. The Steering Committee has authority to issue both temporary and final

remedies during any processes under this policy. Chapters also have authority to issue final remedies during processes under this policy according to their bylaws.

y. **Temporary Discipline.**

Upon notice of a complaint to the Steering Committee by an HGO, at request of the HGO or on its own, the Steering Committee may issue a temporary remedy as necessary to protect the health and welfare of members and the integrity of the organization.

lvii. No temporary discipline will continue beyond the adjudication of the complaint.

lviii. No temporary discipline will continue beyond one hundred and twenty (120) days from the date the member was notified of the temporary discipline, unless extended by the NPC.

lix. Nothing in this policy should be construed to limit the Steering Committee from removing members from online spaces as temporary discipline. The Steering Committee may delegate the authority to remove

members from online spaces to moderators at its discretion.

- z. **Final Discipline.** A final remedy will only be issued following adjudication of the complaint where the Steering Committee determines that the conduct more likely than not occurred, that the conduct violated this policy or an applicable chapter policy, and that the accused member's conduct warrants discipline.

lx. If a local chapter has established suspension or expulsion procedures, the Steering Committee is authorized to enforce these remedies and penalties in accordance with those procedures.

lxi. If the local chapter does not have established suspension or expulsion procedures, they will adopt the procedures outlined in Article III, Section 4 of the DSA Constitution and Article I, Section 3 of DSA bylaws, substituting the NPC majority required with a Steering

Committee
majority.

aa. **Determinations.** In determining temporary or final discipline, the following will be considered:

lxii. The request of the complaining member.

lxiii. The facts of the case and the severity of the offense.

lxiv. The response of the accused member.

lxv. Any history of relevant behavior by the accused member.

lxvi. The recommendation of the HGO.

ab. **Time.** All decisions regarding member discipline determined by the Steering Committee will be made within thirty (30) days of the receipt of the HGO's report. Determinations of member discipline by a chapter meeting, where permitted or required by a chapter's bylaws, will be made within forty-five (45) days of the receipt of the report at a special meeting called specifically for that purpose.

ac. **Remedies.** Remedies may include:

lxvii. A formal discussion between the disciplined

member and the Steering Committee to develop a plan to change the offending behavior(s).

lxviii. Censure of the disciplined member.

lxix. Suspension from committee meetings and other organizational events.

lxx. Removal from committees.

lxxi. Removal from shared resources or communications platforms.

lxxii. Suspension from DSA.

35. No suspension from a DSA will be effective for a period longer than three (3) years.

36. A member's suspension may contain conditions for re-integration at the end of the suspension period.

lxxiii. Expulsion from
DSA.

37. Expulsion from a chapter is treated immediately as a full suspension and immediately forwarded up to the NGP to begin the national expulsion process.
38. NGP will review the expulsion notes and proceedings to ensure expulsions are for conduct and not politically related expulsions before forwarding to the NPC. The NPC will address requests for national expulsion as a complaint under this policy.
39. A nationally expelled member may

petition
to return
to DSA
after five
(5) years
have
passed
from the
date of
initial
expulsion.
All
petitions
to return
to DSA
will be
made to
the NPC.

lxxiv.Any
combination of
remedies
deemed
appropriate.

lxxv.Any and all
other relief
deemed
necessary and
just by the
Steering
Committee or
the chapter.

9. Appeals.

ad. **Right to Appeal.** A
complaining member,
an accused member, or
a chapter HGO may
appeal a chapter
Steering Committee's
adjudication to the
NPC. An adjudication
by the NPC may not be
appealed.

ae. **Appeal of Temporary
Discipline.** Temporary
discipline pending the
outcome of a grievance
decision is not
appealable until the
final adjudication of the
complaint or the
expiration of one
hundred twenty (120)

days from the date the member was notified of the temporary discipline, whichever is sooner.

af. **Grounds.** The limited grounds for appeal are:

lxxvi. The behavior did not violate this policy.

lxxvii. Procedural errors, misconduct, or conflicts of interest affected the fairness of the outcome. Error that did not affect the fairness of the outcome will not warrant the overturning of an adjudication.

lxxviii. The discipline determined by Steering was grossly disproportionate to the conduct.

ag. **Time.** There is no specific time limit for the filing of an appeal; however, the NPC may choose to reject as moot an appeal which does not have an ongoing impact on a member's status.

ah. **Form.** An appeal to the NPC will be initiated by contacting the National Grievance Coordinator, who will provide the party with the appropriate appeal forms, which will then be referred to the NGP.

ai. **Determination.** The NPC has sole and ultimate decision-making authority on all

appeals. The NGP may assist the NPC in reviewing grievance appeals and making recommendations to the NPC. Decisions of the NPC are not appealable.

- aj. **Remedies.** The NPC may affirm or reverse a chapter Steering Committee's adjudication and/or a chapter Steering Committee's decision on member discipline, in whole or in part. Chapters are bound by the NPC's decision on an appeal. The NPC may also choose to remand an appeal to the chapter for further action. Upon remand, chapters are obligated to follow the recommendations of the NPC.

10. Confidentiality.

- ak. **General Policy.** The grievance process under this policy is confidential. However, DSA leaders can often find themselves in difficult situations where they are trying to build trust with their comrades through transparency, but are fearful of disclosing private information. DSA leadership and HGOs will follow this guidance to protect the confidentiality of members:

- i. A complaining member will not be silenced. HGOs can explain that

maintaining confidentiality may help expedite the investigation, preserve the integrity of the process, and de-escalate conflict. A complaining member who agrees to confidentiality should understand that the confidentiality request is only for the period of the investigation.

- ii. Accused members will not be punished for making a good-faith effort to produce evidence for the consideration of HGOs and/or the Steering Committee. Communications regarding a complaint that violate any temporary discipline of a member and/or an HGO's recommendations under Section 7(c)(iii) of this policy (if any) will not be considered as being in good-faith.
- iii. Accused members will not be punished for seeking advice or emotional support from a person they

designate as an advisor or support person under this policy.

- iv. Anyone involved in the investigation, including the complaining member and the accused member, must understand that disclosure of information regarding the complaint can escalate conflict.

Escalation of conflict by a complaining member, an accused member, or a third-party may constitute retaliation under this policy.

- v. HGOs and chapter leaders will refrain from conveying any information provided to them in confidence without the express permission of the party who gave them that information, except as necessary to effect the adjudication of the complaint.

- vi. Chapters and Steering Committees will keep grievance deliberations confidential and discuss such matters only in executive

session. All votes must be a matter of record.

vii. In order to prevent additional harm and/or the spreading of misinformation, chapter leaders will work with the NGP before releasing information about a complaint at the chapter level. A chapter is not in any way restricted from confirming or denying a person's membership status to members.

viii. The NPC, National Grievance Coordinator, and NGP will abide by these confidentiality requirements.

ix. Chapter leadership and HGOs will work through the National Grievance Coordinator and the NGP and not contact the NPC directly about grievance matters. Chapters and/or parties are not permitted to "lobby" the NPC about their desired outcome on appeal, and efforts to do so may be

considered
retaliation.

- x. When the Steering Committee has adjudicated a grievance matter, the ruling will be privately conveyed to the parties in a manner that ensures the safety of survivors and fairness to the accused.
- al. The National Grievance Coordinator and staff responsible for maintaining membership records will maintain a list of expelled members. A chapter may inquire if a specific individual has been expelled and is ineligible for membership, and the National Grievance Coordinator or National staff will ONLY confirm or deny that specific individual's presence on the list. Requests for additional information may be made to the NPC through the NGP. Chapters will not be provided access to additional information regarding expelled members unless the NPC determines that a particular chapter request merits an exception.
- am.No confidential grievance information will be disclosed to law enforcement or any party to a civil lawsuit without a valid and enforceable subpoena requesting said

information. Any HGO or chapter receiving a subpoena or informal request for information or evidence from anyone outside of the parties or in relation to any legal, judicial, administrative or other kind of action should contact the National Grievance Coordinator immediately.

11. Retaliation.

an. Retaliation prohibited.

Retaliation for making a complaint or assisting a member in making a complaint under this policy is prohibited. Retaliation against HGOs for investigating and reporting complaints is prohibited.

Retaliation against Steering Committee members for adjudicating complaints and/or making decisions on member discipline is prohibited.

ao. If any party to the complaint, HGO, or Steering Committee member believes there has been retaliation, they should inform the HGO, who will treat the allegation of retaliatory conduct as a separate complaint under this policy.

ap. The following behaviors may be considered retaliatory and will be considered the subject of a new complaint involving any person(s) engaged in retaliatory conduct:

lxxix. Intentionally exposing confidential information outside of the grievance process in a manner calculated to target the complaining member, the accused member and/or other individuals involved in the process.

lxxx. Filing complaints under this policy in bad faith with no merit against individuals they want to be suspended or expelled for political or personal reasons, or to invoke confidentiality where none is warranted..

lxxxi. Organizing to avoid accountability among friends, supporters, and others inside and outside DSA to foster support and degenerate the grievance process and/or to enlist support from outside organizations.

lxxxii. Publicly disparaging a complaining member or others involved in the investigation by

directly and/or
indirectly
targeting
participants with
profanity, slurs,
or other
language
prohibited by
this policy.

lxxxiii.

Vigilantism/self-
help measures
that include
public shaming,
contacting
employers,
community
groups, family
members, and
romantic/relationship
partners, and
other harmful
public actions.

lxxxiv. Escalation of
conflict while the
grievance is
pending by
using social
media, personal
contacts,
publications,
organizing
efforts, social
networks, or any
other way that
results in an
escalation of the
conflict.

lxxxv. Manipulating
chapter election
processes to
unfairly prevent
parties involved
in grievances
from assuming
leadership
positions.

lxxxvi. Failing to
reveal a conflict
of interest or
failure to recuse
by those
involved in
investigation or

decision-making with regard to a complaint, including HGOs who do not reveal actual conflicts of interest and/or do not recuse themselves from matters where such a conflict is likely to arise.

lxxxvii. Taking other adverse action against those involved in the process, including piling on additional work for people in leadership positions to make them look bad, and subjecting them to continuing retaliation as described above for the way they conducted the investigation and/or decisions which impacted the grievance outcome.

aq. Retaliation reported during the grievance process is treated as a separate complaint, but evidence of retaliatory conduct may be considered by the NPC as part of any decision on appeal..

ar. Refusal by the chapter to implement a final appeal ruling may be considered retaliation. The NPC may also take action against chapter leadership to ensure its decisions are honored.

12. Alternative Dispute Resolution.

as. Use of Alternative Dispute Resolution.

In certain circumstances, an alternative dispute resolution based on restorative practices and the principles of transformative justice may be preferable to a formal investigation and adjudication of a complaint. Where the complaining member and accused member agree and the HGO determines there is no risk of further harm from communication between the parties, an HGO may recommend that the complaint be referred for alternative dispute resolution under this section.

at. Nothing in this policy should be construed as limiting the use of Alternative Dispute Resolution or other informal practices to resolve conflict where no complaint has been filed.

au. Chapters will work to ensure that local bylaws, codes of conduct, and policies permit restorative practices, mediation, and/or other transformative remedies.

av. All alternative dispute resolution is voluntary and no alternative dispute resolution may be imposed upon the parties.

aw. Alternative dispute resolution will only be used where the complaining member is demonstrably comfortable with that approach and the accused member is ready to acknowledge responsibility for the harm caused.

ax. Alternative dispute resolution may include:

lxxxviii. Mediation.

lxxxix. Talking or Discussion Circles.

xc. Requesting a training from national committees

xc. Other restorative practices.

ay. Any information shared as part of an alternative dispute resolution is subject to the same confidentiality as information shared during an investigation.

az. An HGO will report the outcome of any alternative dispute resolution to the Steering Committee, whether successful or unsuccessful.

ba. If an HGO refers a matter for alternative dispute resolution and the resolution is unsuccessful, the HGO will investigate according to the terms of this policy and make the appropriate report to the Steering Committee.

13. Political Discipline

- a. Expulsion of a member under the above policies and processes constitutes a “conduct expulsion,” or a finding that the member engaged in “undemocratic, disruptive behavior,” permitting expulsion under the second criterion of Article I, Section 3 of DSA’s Bylaws.
- b. A “political expulsion” is defined as an expulsion on the basis of the first criterion of Article I, Section 3 of DSA’s Bylaws, “substantial disagreement with the principles or policies of the organization.”
- c. With the exception of Article 13, no article of this policy applies to political expulsions or to any other disciplinary processes for which the subject is the political rather than personal conduct of the accused.
- d. With the exception of Article 13, this policy may not be used to adjudicate a political expulsion, nor may it be used to apply other discipline to a member on the basis of political disagreement or otherwise adjudicate political disagreement between DSA members.
- e. DSA’s political decision-making bodies, namely the National Political Committee, chapter Steering Committees, chapter general bodies, and the National Convention, have sole authority over political expulsions.
 - i. A member expelled on political grounds may appeal their expulsion. Political expulsion by a chapter Steering Committee may be appealed to the chapter general body. Political expulsion by a chapter general body may be

appealed to the National Political Committee. Political expulsion by the National Political Committee may be appealed to the National Convention.

- ii. Members facing political expulsion must receive specific written notice of the charges against them and must be given the opportunity to be heard before the body responsible for adjudicating the charges.
 - iii. HGOs and bodies which are primarily responsible for components of the grievance process, such as the NGP and CGO, have no role in the investigation or adjudication of a member's political conduct.
- f. There is a general policy of transparency for all political disciplinary processes. The pertinent political information used to justify any political expulsion must be disclosed to the general membership.